

GOVERNMENT HACK · TROOPTOTEACHER TECHNOLOGIES

Foundations of Constitutional Government

United States Government & Civics (GC) · Unit 1 · GC.01–GC.09

“How can unelected judges check the other branches — and what limits their power?”

Grades 9–12 · Suggested 10–12 days · Supplemental under TCA § 49-6-2202(a)(3)

Essential Question: How can unelected judges check the other branches — and what limits their power?

GC.19

Article III & Judicial Power

GC.20

Selecting & Confirming Justices

GC.21

Judicial Review & Marbury v. Madison

GC.22

Deciding What Is Constitutional

Article III & Judicial Power

Learning target: I can analyze Article III — the judicial power, the tenure of judges, and the jurisdiction of the Supreme Court.

PRIMARY SOURCE



PRIMARY SOURCE • DOCUMENT

Judiciary Act of 1789

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The Judiciary Act of 1789: Congress built the federal court system that Article III only sketched.

“The judicial Power of the United States, shall be vested in one supreme Court... The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour.” — Constitutional Convention, U.S. Constitution, Article III, Section 1 (1787)

Judiciary Act of 1789 • 1st U.S. Congress (1789) • Wikimedia Commons

HOOK

These nine officials never face an election, can't be fired for their rulings, and keep their jobs for life. Why would a democracy design a branch like that?

KEY VOCABULARY

Jurisdiction /joor-is-DIK-shun/

jurisdicción

The authority of a court to hear and decide a case; the Supreme Court has both original and appellate jurisdiction under Article III.

CHECK FOR UNDERSTANDING • DOK 2

Why does the Constitution give federal judges their offices 'during good Behaviour' — effectively for life?

- A ✓ So they can decide cases free from political pressure
- B Because judges cannot be removed for any reason
- C So the President can replace them every four years
- D Because judges must also serve in Congress

Answer: A. DOK 2: Life tenure ('good Behaviour') insulates judges from elections and political retaliation, so they can rule on the law without fear of losing their jobs.

Selecting & Confirming Justices

Learning target: I can explain how a Supreme Court justice is nominated by the President and confirmed by the Senate.

PRIMARY SOURCE



PRIMARY SOURCE • PORTRAIT

John Jay

drop image: GC.20_john-jay-portrait.jpg

Gilbert Stuart's John Jay (1794), the first Chief Justice — nominated by the President, confirmed by the Senate.

“...he shall nominate, and by and with the Advice and Consent of the Senate, shall appoint... Judges of the supreme Court.” — Constitutional Convention, U.S. Constitution, Article II, Section 2 (1787)

John Jay • Gilbert Stuart (1794) • Wikimedia Commons

HOOK

A single choice can steer the Constitution for forty years. That's why one open seat can freeze all of Washington. How does someone actually get the robe?

KEY VOCABULARY

Nomination /nom-ih-NAY-shun/
nominación

The President's naming of a person to fill a Supreme Court vacancy; the first step in seating a justice.

CHECK FOR UNDERSTANDING • DOK 2

Which two parts of government share the power to seat a new Supreme Court justice?

- A The House and the Senate
- B The President and the Supreme Court
- C ✓ The President nominates and the Senate confirms**
- D The states and the Supreme Court

Answer: C. DOK 2: Article II gives the President the power to nominate and the Senate the power to confirm ('Advice and Consent') — a shared appointment power that checks both branches.

Judicial Review & Marbury v. Madison

Learning target: I can explain judicial review and how Marbury v. Madison (1803) established it.

PRIMARY SOURCE



PRIMARY SOURCE · PORTRAIT

Chief Justice John Marshall (judicial review / Marbury)

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Chief Justice John Marshall, whose Marbury v. Madison (1803) opinion established judicial review.

“It is emphatically the province and duty of the judicial department to say what the law is.” — Chief Justice John Marshall, Marbury v. Madison, 5 U.S. 137 (1803)

Chief Justice John Marshall (judicial review / Marbury) · (artist unconfirmed) (19th c.) · Wikimedia Commons

HOOK

The Constitution never says the courts can cancel a law — so how did nine judges claim the power to overrule Congress? One 1803 case answered it forever.

KEY VOCABULARY

Judicial Review /joo-DISH-ul ree-VYOO/
revisión judicial

The power of the courts to declare a law or government action unconstitutional and therefore void — established by Marbury v. Madison.

CHECK FOR UNDERSTANDING · DOK 3

What power did Marbury v. Madison (1803) establish for the courts?

- A The power to elect the President
- B ✓** Judicial review — the power to declare a law unconstitutional and void
- C The power to collect taxes
- D The power to declare war

Answer: B. DOK 3: Marshall reasoned that it is 'the province and duty of the judicial department to say what the law is,' and that a law 'repugnant to the constitution is void' — establishing judicial review.

Deciding What Is Constitutional

Learning target: I can describe how the Supreme Court decides constitutionality, and explain judicial activism and restraint.

PRIMARY SOURCE



PRIMARY SOURCE · PHOTO

U.S. Supreme Court Building

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The U.S. Supreme Court Building — where the 'rule of four' decides which laws the Court will judge.

“the constitution controls any legislative act repugnant to it.” — Chief Justice John Marshall, *Marbury v. Madison*, 5 U.S. 137 (1803)

U.S. Supreme Court Building · Ken Hammond (USDA) (modern) · Wikimedia Commons

HOOK

Thousands of cases ask the Supreme Court for a hearing each year; it takes only about 60. Who decides which — and how boldly should they rule once they do?

KEY VOCABULARY

Writ of Certiorari /sur-shee-uh-RAIR-ee/
auto de avocación (certiorari)

An order by which the Supreme Court agrees to hear a case; it takes the 'rule of four' — four of the nine justices — to grant it.

CHECK FOR UNDERSTANDING · DOK 3

How do judicial activism and judicial restraint differ?

- A Activism means judges never rule; restraint means they rule on everything
- B Activism applies only to state courts; restraint only to federal courts
- C They are two names for the same approach
- D ✓** Activism is a greater willingness to strike down laws or set new policy; restraint defers to the elected branches and precedent

Answer: D. DOK 3: Judicial activism describes judges more willing to overturn laws or make new policy (often via a 'living Constitution'); judicial restraint describes judges who defer to elected branches and original intent.

Who Guards the Constitution? Perspectives on Judicial Power

The Guardian of Rights

Because justices are not elected and serve for life, the Court can protect minority rights and the Constitution even when the majority objects (GC.21, GC.22).

The Countermajoritarian Worry

Others argue that letting nine unelected judges overturn laws passed by elected representatives is in tension with democracy (GC.21).

Activism vs. Restraint

Should judges read the Constitution as a 'living document' that adapts, or interpret the 'original intent' of the Framers? The debate shapes every major ruling (GC.22).

The Appointment Fight

Because a justice can serve for decades, the President's nomination and the Senate's confirmation have become high-stakes political battles (GC.20).

Our Signature Move



Tennessee has sat on the nation's highest bench. John Catron, who had served as Chief Justice of Tennessee's own Supreme Court, was appointed to the U.S. Supreme Court in 1837 and served until his death in Nashville in 1865 — the first Tennessean to help decide what the Constitution means (GC.20).

Predict • Play • Spiral

Predict First — open the unit

Predict first: Should nine unelected judges be able to strike down a law passed by Congress and signed by the President? Write your gut answer now — you'll test it against *Marbury v. Madison* and the idea of judicial review.

Warm-Up Play — Activist or Restrained?

3-minute sorting game (GC.22). Read a short summary of a real ruling and call whether the Court 'made new policy' (judicial activism) or 'deferred to the elected branches / original text' (judicial restraint). Students feel that the same case can look like either, depending on your lens.

Spiral — retrieve & connect

GC.21 → Unit 1 (GC.06, checks & balances)

Judicial review is the judiciary's check on the other branches — the principle you first met in Foundations, now with the case that created it.

GC.20 → Unit 4 (GC.16) & Unit 3 (GC.15)

The President nominates and the Senate confirms — the same appointment power you studied in the Executive and Legislative units.

GC.22 → Unit 3 (GC.11, *Baker v. Carr*)

Tennessee's *Baker v. Carr* showed the Court deciding questions once thought 'political' — judicial power in action.

Judicial Reasoning

- Cite the clause or the case before you argue.
- Separate what the law says from what you wish it said.
- Disagree with the reasoning, not the person.
- One voice at a time; make room for the quiet voice.

Revisit the Essential Question

“How can unelected judges check the other branches — and what limits their power?”

Students now have the sources, vocabulary, and reasoning to answer it — in a CER paragraph or the unit DBQ.

GC.19 · GC.20 · GC.21 · GC.22